

108	Garces vs. Kia America, Inc., 25-01498608	Defendant Kia America, Inc. ("Defendant") moves for summary judgment or, in the alternative, adjudication of issues as to Plaintiff Keren Garces' Complaint. The motion is unopposed. A defendant moving for summary judgment satisfies his or her initial burden by showing that one or more elements of the cause of action cannot be established or that there is a complete defense to the cause of action. (CCP §437c(p)(2).) The scope of this burden is determined by the allegations of the plaintiff's complaint. (<i>FPI Development v. Nakashima</i> (1991) 231 Cal.App.3d 367, 381-382 (pleadings serve as the outer measure of materiality in a summary judgment motion)). Once a defendant meets its prima facie showing, the burden shifts to the plaintiff to show by reference to specific facts the existence of a triable issue as to that affirmative defense or cause of action. (<i>Aguilar v. Atlantic Richfield Co.</i> (2001) 25 Cal.4th 826, 850.) The Complaint asserts causes of action for: 1) Breach of Implied Warranty; 2) Breach of Express Warranty; and 3) Violation of the Song Beverly Consumer Warranty Act. <i>First Causes of Action for Breach of Implied Warranty</i> Defendant contends that the first cause of action for breach of implied warranty is fails because the vehicle purchased was a used vehicle, and therefore there is no implied warranty. Civil Code Section 1791(a) defines consumer goods as "any new product or part thereof..." (Cal. Civ. Code § 1791(a). Although the Complaint alleges the 2016 Kia Sorento at issue was new, Defendant has produced the Sales Contract, which indicates that the vehicle was used when sold to Plaintiff. (Compl. Bernardi Decl., Exh. A.) Even if an implied warranty was applicable to Plaintiff's purchase, the action was filed outside the four year statute of limitations. Commercial Code section 2725 provides in pertinent part: "(1) An action for breach of any contract for sale must be commenced within four years after the cause of action has accrued.... [¶] (2) A cause of action accrues when the breach occurs, regardless of the aggrieved party's lack of knowledge of the breach. A breach of warranty occurs when tender of delivery is made, except that where a warranty explicitly extends to future performance of the goods and discovery of the breach must await the time of such performance the cause of action accrues when the breach is or should have been discovered."
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Here, it is undisputed that Plaintiff purchased the vehicle on May 12, 2019. (UF 1.) There are no allegations in the Complaint that any defects presented during the one year implied warranty period. (See Civ. Code §1791.1(c).) Plaintiff initiated this action more than 6 years after purchase of the vehicle, on July 21, 2025. (See ROA No. 2.)

Thus, the first cause of action fails.

Second Causes of Action for Breach of Express Warranty

Defendant contends the second cause of action for breach of express warranty is also barred by the four-year statute of limitations of Commercial Code 2725.

As set forth above, Plaintiff filed this action more than six years after delivery of the vehicle. The Court further notes that the Complaint does not contain any allegations that the express warranty extended to future performance; nor is there any allegation of delayed discovery.

Accordingly, the second cause of action is barred by the statute of limitations.

Third Cause of Action for Violation of the Song Beverly Consumer Warranty Act

Defendant contends that the third cause of action for violation of the Song Beverly Consumer Warranty Act is also governed by and barred by the four year statute of limitations found in Commercial Code §2725. (See *Krieger v Nick Alexander Imports* (1991) 234 Cal.App.3d 205, 215.)

To the extent that the six year statute of limitations set forth in Code of Civil Procedure section 871.21, which came into effect on January 1, 2025, applies to this cause of action, it would also bar this claim.

Pursuant to Code of Civil Procedure section 871.21, subdivision (b), "an action covered by Section 871.20 shall not be brought later than six years after the date of original delivery of the motor vehicle." (Code Civ. Proc., § 871.21, subd. (b).)

The above applies to "an action, brought against a manufacturer who has elected under Section 871.29 to proceed under this chapter, seeking restitution or replacement of a motor vehicle pursuant to subdivision (b) or (d) of Section 1793.2, Section 1793.22, or Section 1794 of the Civil Code, or for civil penalties pursuant to subdivision (c) of Section 1794 of the Civil Code, where the request for restitution or replacement is based on noncompliance with

	the applicable express warranty.” (Code Civ. Proc., § 871.20, subd. (a) [emphasis added].) A set forth above, it is undisputed that Plaintiff purchased the vehicle on May 12, 2019. (UF 1.) Additionally, a review of the record confirms that Plaintiff initiated this action more than 6 years later, on July 21, 2025. (See ROA No. 2.) Thus, the third cause of action is barred by the statute of limitations. Accordingly, summary judgment is GRANTED. <i>Moving party to give notice and to prepare a proposed judgment.</i>
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